

Release Deed Guide

This guide explains the purpose, documentation, registration process, stamp duty compliance, and practical considerations related to Release Deeds in India. Release Deeds are commonly used in family settlements, inheritance, and ownership release matters.

1. What is a Release Deed?

- A Release Deed is a legal document through which one co-owner or legal heir relinquishes their share or rights in a property.
- It is commonly used among family members during inheritance or property settlements.
- The deed transfers ownership rights to another co-owner or family member.

2. Common Uses of a Release Deed

- Family property settlements.
- Relinquishment of inherited property rights.
- Transfer of ownership between siblings or relatives.
- Settlement of jointly owned property disputes.
- Clarification of ownership shares.

3. Documents Required

- Original title deed or property documents.
- Identity proof of all parties (Aadhaar, Passport, PAN, etc.).
- Address proof of parties.
- Passport-size photographs.
- Property tax receipts and encumbrance certificate (if applicable).
- Proof of relationship between parties.
- Death certificate (in inheritance cases).

4. Drafting and Execution

- The Release Deed should clearly identify the releasor and releasee.
- Property details and ownership shares must be accurately described.
- The deed should specify whether consideration/payment is involved.
- All parties must sign the document in the presence of witnesses.

5. Registration Process

- Visit the jurisdictional Sub-Registrar Office.
- Submit the drafted Release Deed along with supporting documents.
- Pay applicable stamp duty and registration charges.

- Biometric verification and witness presence may be required.
- Receive the registered Release Deed after completion.

6. Stamp Duty and Charges

- Stamp duty varies across Indian states.
- Concessional rates may apply for release among close family members.
- Market value of the property may impact duty calculations.
- Additional registration fees are payable separately.

7. Important Legal Points

- A Release Deed generally applies between co-owners or legal heirs.
- Once executed and registered, it becomes legally binding.
- Improper drafting may create future ownership disputes.
- Legal review is advisable for high-value properties.

8. Common Mistakes to Avoid

- Incorrect property descriptions.
- Missing signatures or witness details.
- Failure to register the document.
- Ignoring state-specific stamp duty requirements.
- Using unverified or outdated ownership documents.

9. Practical Tips

- Verify encumbrance and title status before execution.
- Maintain copies of all registered documents.
- Use lawyer-reviewed drafts for clarity and compliance.
- Check local registrar office procedures in advance.

Quick Reference Checklist

Requirement	Status
Property Documents Available	■
Identity Proofs Attached	■
Draft Release Deed Prepared	■
Witnesses Arranged	■
Stamp Duty Paid	■
Registration Completed	■
Registered Copy Collected	■

Disclaimer: This document is for informational purposes only and does not constitute legal advice. Stamp duty, registration charges, and legal requirements vary across Indian states. Consult a qualified advocate or document professional for transaction-specific guidance.